

SENATE BILL 1209

By Rose

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to discrimination in educational institutions.

WHEREAS, a historic rise in antisemitic violence, harassment, and discrimination has occurred at K-12 schools, colleges, and universities across the United States, targeting Jewish students; and

WHEREAS, on April 2024, the Director of the Federal Bureau of Investigation found that the number of FBI investigations into antisemitic hate crimes tripled in the months after October 7, 2023; and

WHEREAS, according to a recent Gallup Poll, eighty-one percent of Americans now see antisemitism as either a very or somewhat serious problem, up from fifty-seven percent two decades ago; and

WHEREAS, acts of antisemitism on our campuses undermine the educational and social fabric of our institutions; and

WHEREAS, promoting understanding, tolerance, and respect for all students and faculty is imperative; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 50, is amended by adding the following as a new part:

49-50-1801.

(a) Discrimination on the basis of race, ethnicity, national origin, sex, disability, religion, or marital status against a student or an employee in a public institution of education is prohibited. A person in this state must not, on the basis of race, ethnicity,

national origin, gender, disability, religion, or marital status be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any public education program or activity, or in any employment conditions or practices, conducted by a public institution of education that receives or benefits from federal or state financial assistance. As used in this part, "public institution of education" means local education agencies, public charter schools, and public institutions of higher education.

(b) The criteria for admission to a program or course must not have the effect of restricting access by persons of a particular race, ethnicity, national origin, disability, religion, or marital status.

(c) All public education classes must be available to students without regard to the student's race, ethnicity, national origin, sex, disability, religion, or marital status. This subsection (c) is not intended to eliminate the provision of programs designed to meet the needs of students with limited proficiency in English, gifted students, or students with disabilities or programs tailored to students with specialized talents or skills.

(d) Guidance services, counseling services, and financial assistance services in the state public education system are available to all students equally and provided in the same manner, regardless of race, ethnicity, national origin, sex, disability, religion, or marital status.

(e) All education programs, activities, and opportunities offered by public institutions of education must be made available without discrimination on the basis of race, ethnicity, national origin, sex, disability, religion, or marital status.

49-50-1802.

(a) A public institution of education must treat harassment or discrimination against students or employees, or resulting from institutional policies or programs on their campuses, motivated by or including antisemitic intent in an identical manner to discrimination motivated by race.

(b) As used in this section, "antisemitism" has the same meaning as defined by the International Holocaust Remembrance Alliance's (IHRA) Working Definition of Antisemitism, including its contemporary examples, as it was adopted on May 26, 2016.

(c) All public institutions of education shall integrate the definition of antisemitism into their student, faculty, and employee codes of conduct. Additionally, prohibited conduct as it relates specifically to antisemitism must be incorporated and include harassment and discrimination against Jews in compliance with Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d et seq.) antidiscrimination regulations provided by the United States department of education and United States department of justice.

(d) All public institutions of education are encouraged to incorporate antisemitism awareness training for all students, faculty, administrators, and campus police, as well as to integrate Jewish American Heritage curricula for students that incorporates Jewish experiences in America pre- and post-revolution, pre- and post-WWII and the Holocaust, and in modern times.

49-50-1803.

(a) The department of education shall designate a "Title VI coordinator" dedicated to monitoring antisemitic discrimination and harassment at public kindergarten through grade twelve (K-12) schools. Each governing board of a public institution of higher education shall designate a "Title VI coordinator" dedicated to monitoring antisemitic discrimination and harassment at the public institution of higher education.

All public institutions of education shall formally report incidents and complaints of antisemitic discrimination and harassment to their respective Title VI coordinator.

(b) The Title VI coordinator shall thoroughly investigate all complaints. If, after reasonable investigation, the Title VI coordinator determines that the public institution of education has engaged in, allowed, or not sufficiently prohibited antisemitic discrimination, the respective agency shall give written notice to the institution to address its concerns no later than thirty (30) days after the notice is received.

(c) If the Title VI coordinator determines the public institution of education has not taken the necessary actions by the expiration of the thirty-day period, then the respective agency shall report its findings to the United States department of education and United States department of justice by making a complaint under Title VI of the Civil Rights Act of 1964 (42 U.S.C. § 2000d et seq.).

(d) Each Title VI coordinator shall, no later than June 30 of each year, issue an annual report on antisemitism to the general assembly.

49-50-1804.

(a) Criticism of Israel that is similar to criticism toward any other country is not regarded as antisemitic.

(b) This act does not diminish or infringe upon any right protected under the First Amendment to the United States Constitution or the Tennessee Constitution.

(c) This act must not conflict with federal or state discrimination laws.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.